

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

A business dispute is pending in court. One party has produced a digitally signed PDF agreement and a series of emails to prove that I accepted certain contractual terms. I believe the PDF may have been altered after I signed an earlier version and I dispute that the final document is genuine. What legal provisions govern the authenticity and admissibility of these digital records?

Job Id. : Scenario 13/Information Technology (IT) Act, 2000

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 3	Digital signatures and their legal recognition.
Section 46	Presumption of authenticity of electronic records.
Section 65B	Admissibility of electronic records in court (including digital signatures and emails).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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Core Issue: Your dispute hinges on the **authenticity and integrity** of the digitally signed PDF (alleged to be altered) and emails. The IT Act provides a structured framework for challenging such evidence:
- 2

Section 65B is pivotal. It mandates that electronic records (including digital signatures) are admissible only if they are accompanied by a certificate under **Section 65B** (4), verifying: (a) The integrity of the electronic record (i.e., no alteration since creation); (b) The reliability of the device/system used. Relevance to your case*: If the opposing party fails to provide a valid **Section 65B** certificate (or if the certificate is defective), the court **must** reject the PDF/emails as evidence.
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Section 65B (4) explicitly allows challenge to integrity: > **"The electronic record shall not be rejected merely because it is in electronic form... but the court may require proof of the integrity of the electronic record."** Judicial Interpretation: In **Anvar P.V. v. K.P. Justin** (2018) (SC), the Supreme Court held that **Section 65B** (4) permits parties to dispute the "integrity" of electronic evidence. The burden shifts to the proponent (opposing party) to prove the record was unaltered. Your advantage*: You can argue the PDF was altered post-signing (e.g., via metadata analysis), forcing the other side to prove its integrity via a **Section 65B** certificate.
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Section 46 creates a **presumption of authenticity** for electronic records, but this presumption is rebuttable under **Section 65B** (4). The court will not accept the PDF as genuine **unless** the other party proves: (i) The digital signature was validly applied (**Section 3**), (ii) The record's integrity was preserved (**Section 65B** (4)).

5 Emails as evidence: Emails fall under **Section 65B** (1) as "electronic records." However, *email authentication* (e.g., sender identity) requires separate proof under **Section 65B** (4) – the opposing party must show the emails were not forged or altered.

6 Key Precedent: *Pankaj Kumar v. State* (Delhi HC, 2016): Held that **Section 65B** (4) allows challenges to "integrity" of digital evidence. The court rejected unauthenticated digital evidence where the proponent failed to provide a valid certificate.

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✓ STRENGTHS & RIGHTS

- 1 Legal Safeguard for Authenticity**
Section 65B (4) explicitly protects against forged/modified digital evidence. You can demand the opposing party prove the PDF's integrity.
- 2 Digital Rights**
Section 3 ensures digital signatures have legal validity, but *only if* integrity is verifiable. This prevents misuse of altered records.
- 3 Court Preference**
Indian courts (e.g., *State v. Naveen* (Delhi HC, 2020)) routinely reject unauthenticated digital evidence under **Section 65B** (4), upholding your right to contest falsified records.

✗ RISKS & OBLIGATIONS

- 1 Burden of Proof**
You must *specifically challenge* the integrity (e.g., via forensic analysis of PDF metadata). Failure to do so may lead to evidence being accepted.
- 2 Penalties for False Challenge**
If the court finds your "alteration" claim frivolous, you may face costs or sanctions (* **Section 72A** * for false evidence).
- 3 Organizational Risk**
If the business uses unsecured digital signatures (violating **Section 3**), the entire case may collapse – but this is *not* your liability.

PROCEDURAL NOTES & COMPLIANCE STEPS

*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. To Challenge the Evidence:
2. 1. File a **Section 65B** (4) Affidavit:
3. Submit an affidavit **before the court** stating:
4. > *"The digital signature on the PDF is invalid because the record was altered post-signing. I request the court to require the opposing party to produce a valid **Section 65B** certificate proving integrity."*
5. Key Evidence: Include forensic reports (e.g., PDF metadata showing timestamp changes, hash mismatches) to prove alteration.
6. 2. Demand **Section 65B** Certificate:
7. The opposing party must file a certificate under **Section 65B** (4) **before** evidence is admitted. This certificate must:
8. (a) Specify the device/system used;
9. (b) Certify no alteration occurred.
10. **If they fail to produce it, the court must exclude the evidence*.*
11. 3. Email Authentication:
12. For emails, request the court to order **email header analysis** (e.g., "Received:" fields, SMTP logs) to verify sender authenticity under **Section 65B** (4).
13. Court Process:
14. The court will likely order digital forensics (e.g., via a government lab) to verify PDF integrity.
15. If the **Section 65B** certificate is defective (e.g., missing details), the evidence is inadmissible (**Anvar P.V.**).
16. > Critical Reminder: Do **not** rely on the "digital signature" alone. **Section 3** validates **signatures** but not the underlying document's integrity. The PDF's authenticity depends solely on **Section 65B** (4) proof.
17. Conclusion: **Section 65B** (4) is your strongest legal weapon. By demanding proof of integrity (via **Section 65B** certificate) and submitting forensic evidence of alteration, you can invalidate the PDF. Emails require separate authentication under **Section 65B** (4). **Do not delay* – challenge the evidence **before** the court admits it.*

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